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County: los-angeles

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Case Number: 24STCV23545 Hearing Date: August 10, 2026 Dept: 508

Superior Court
of California

County of Los
Angeles

Department 508

RAMON MARTINEZ,

Plaintiff,

vs.

CESAR
MARTINEZ, et al.,

Defendants.

Case No.:

24STCV23545

Hearing Date:

August 10, 2026

Hearing

Time: 10:00 a.m.

[TENTATIVE]
ORDER RE:

DEFENDANTS CESAR MARTINEZ, LAURA MARTINEZ, AND RICARDO SNCHEZ’S DEMURRER TO PLAINTIFF’S COMPLAINT

Background

On September 12, 2024, Plaintiff Ramon Martinez (“Plaintiff”) filed this action against Defendants Cesar Martinez, Laura Martinez, and Ricardo Sanchez (collectively, “Defendants”). The complaint alleges causes of action for (1) quiet title, (2) cancellation of instrument, (3) cancellation of instrument, (4) cancellation of instrument, (5) declaratory relief, and (6) elder abuse.

Defendants now demur to each cause of action of the complaint. Plaintiff opposes. Defendants did not reply.

Previously, the Court continued the hearing on the demurrer and ordered the parties to meet and confer. Thereafter, the parties engaged in settlement negotiations; however, at the hearing on February 20, 2026, the parties informed the Court that there was no signed settlement. Accordingly, the Court continued the hearing on the demurrer to today.

Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. ((Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) In testing the sufficiency of the complaint, the court assumes the truth of properly pleaded factual allegations, facts reasonably inferred from those expressly pleaded, and judicially noticed matters. ((Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) “A demurrer tests the pleadings alone and not the¿evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” ((SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) Accordingly, “[w]hether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer." ((Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609-610.)

Under Code of Civil Procedure section 430.10, subdivisions (e) and (f), a demurrer may be filed if the pleading is uncertain or does not state facts sufficient to constitute a cause of action. For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. ((Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 967.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment, otherwise, it is abuse of discretion. ((Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.)

Discussion

A. Allegations of the Complaint

Plaintiff alleges that he is 95 years of age and is a non-native English speaker, who "does not read or write in the English language. Plaintiff relies on others, to translate documents from English to Spanish." (Compl., ¶ 1.) Cesar Martinez is Plaintiff's son, Laura Martinez is Plaintiff's daughter, and Ricardo Sanchez is Plaintiff's son-in-law. (Compl., ¶¶ 2-4.)

Plaintiff alleges that "[i]n or around 1969, Plaintiff purchased the real property located at 4722 Klamath Street Los Angeles, California 90032 (hereinafter 'Subject Property')." (Compl., ¶ 7.) "Since 1969, Plaintiff made all the payments related to the Subject Property. Plaintiff has occupied and improved the Subject Property. Plaintiff has acted as the sole owner of the Subject Property. Plaintiff has made substantial improvements and repairs to the Subject Property. In all respects, Plaintiff has carried on as the true and legitimate owner of the Subject Property for over 55 years." (Compl., ¶ 8.)

Regarding

Plaintiff’s son, Cesar Martinez, Plaintiff alleges that “[i]n or around, December 7, 1993, Son had Plaintiff execute a Quitclaim Deed recorded on December 8, 1993, as instrument number 93-2403616 (hereinafter ‘Disputed Deed No. 1’)(Exhibit ‘2’). Plaintiff does not recall, when, where or why he would execute the Disputed Deed No. 1. There was no need or reason to grant Son an ownership interest in the Subject Property. Plaintiff signed Disputed Deed No. 1 as a result of Son’s breach of fiduciary and betrayal of Plaintiff's trust. Plaintiff does not recall executing Disputed Deed No. 1. Plaintiff was not paid consideration for executing Disputed Deed No. 1.” (Compl., ¶ 9.) Plaintiff further alleges fraud and “does not believe that he signed Disputed Deed No. 1 and believes it is a forgery.” (Ibid.)

Plaintiff also disputes a second Quitclaim Deed recorded on June 22, 2012, where Plaintiff and his deceased wife granted ownership to Cesar Martinez. (Compl., ¶ 10.) Plaintiff similarly believes the deed is a forgery and fraudulently obtained. (Ibid.) Plaintiff also disputes a Grant Deed executed by Cesar Martinez on December 14, 2020, and recorded on January 19, 2021, alleging that it was executed “in an effort to deprive Plaintiff of his ownership interest in the Subject Property.” (Compl., ¶ 11.)

Plaintiff alleges that “[i]n or around September, 2023, Plaintiff retained counsel Paul Velasco to prepare his Revocable Living Trust. As part of the title search to learn what assets Plaintiff owned, Nr. Velasco discovered that Plaintiff was not on title to the Subject Property as a result of the recording of the Disputed Deeds No. 1, No. 2 and No. 3.” (Compl., ¶ 12.) Plaintiff requested that his “Son, Daughter and Son-in-law restore title to the Subject Property back to him, but they refuse to do so.” (Compl., ¶ 13.) “By way of this action, Plaintiff is seeking to restore title to the Subject Property to himself so that Plaintiff can prepare his Revocable Living Trust. Plaintiff alleges that Son, Daughter and Son-in-law are holding title to the Subject Property as constructive trustees for Plaintiff.” (Compl., ¶ 14.)

B. Statute of Limitations

Defendants demur to Plaintiff’s complaint in its entirety as barred by the statute of limitations.

First and foremost,“‘[t]he contention that a statute limiting the time for the commencement of an action to set aside a deed to the state for delinquent taxes does not apply to an owner in exclusive and undisputed possession of the property taxed, is largely based on a rule stated to be that a general statute of limitations does not run against such an owner to remove a cloud upon his title. It may be assumed that such is the general rule. [Citations.]’” ((Ankoanda v. Walker-Smith (1996) 44 Cal.App.4th 610, 616.) In the complaint, Plaintiff explicitly pleads that he “made all the payments related to the Subject Property[,] … occupied and improved the Subject Property,” and “acted as the sole owner of the subject property.” (Compl., ¶ 8.)

Moreover, Plaintiff pleads that the deeds were obtained through fraudulent means. “The statute of limitations for fraud is three years.” ((Cansino v. Bank of America (2014) 224 Cal.App.4th 1462, 1472.) However, the statute of limitations for fraud does not begin running until the discovery of the alleged fraud. “An action for relief on the ground of fraud … is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake. (Code Civ. Proc., § 338, subd. (d).)

Plaintiff’s opposition correctly contends that the statute of limitations for fraud does not begin to run until the discovery of the alleged fraud, which is the underlying basis for his causes of action. However, a plaintiff must allege sufficient facts to support invoking the discovery rule. “¿The discovery-related facts should be pleaded in detail to allow the court to determine whether the fraud should have been discovered sooner.¿” ((Cansino v. Bank of America (2014) 224 Cal.App.4th 1462, 1472); (see also CAMSI IV v. Hunter Technology Corp. (1991) 230 Cal.App.3d 1525, 1536-1537 [“¿A plaintiff whose complaint shows on its face that his or her claim would be barred by the applicable orthodox statute of limitations, and who intends to rely on the discovery rule to toll the orthodox limitation period, ‘must specifically plead facts which show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence. [Citations.] Mere conclusory assertions that delay in discovery was reasonable are insufficient and will not enable the complaint to withstand general demurrer. [Citation.]’¿”].)

Plaintiff's opposition adequately summarizes the complaint, asserting that "Plaintiff has alleged and can prove that he made all payments, paid taxes, paid insurance, made substantial improvements. At no time, did Plaintiff have any reason to be concerned about title, or receive notice that there was an issue with title, because all payments, taxes and insurance were in his name. For all intent and purposes, Plaintiff was the owner of the Subject Property. There were no triggers of suspicion or concerns to place Plaintiff on an inquiry notice or create a situation that would have made him aware of a problem. Thus, he could not have made an earlier discovery." (Opp., 7:12-22; see Compl., ¶¶ 8-11.) Moreover, Plaintiff contends that "Plaintiff did not discover the title transfers until Plaintiff was with his attorney, Paul Velasco, who ran a title search to create Plaintiff's trust. It was only then that Plaintiff discovered the title transfers, based on Mr. Velasco's due diligence. The deed transfers 'shocked' Plaintiff." (Opp., 7:23-28; see Compl., ¶ 12.)

Plaintiff's complaint sufficiently alleges when he discovered the fraud and why he was unable to discover it earlier despite reasonable diligence. Accordingly, Plaintiff pleads sufficient facts to invoke the delayed discovery rule under fraud. Because fraud is subject to a three-year statute of limitations and Plaintiff filed his complaint on September 12, 2024, his causes of action are not barred.

C. First Cause of Action for Quiet Title

Defendants demur to the first cause of action as time-barred. Specifically, "Defendants contend that the quiet title cause of action is barred by one or more statutes of limitations related to the causes of action needed for Plaintiff to prove he has title to The Property. Since as more fully set forth below, the causes of action for cancellation of instrument, declaratory relief and elder abuse are barred by respective statutes of limitation, Plaintiff's quiet title action is also time barred and invalid." (Dem., 4:19-24.) As set forth above, Plaintiff's complaint is not time-barred. Given this is the only ground upon which Defendants demurred to the first cause of action, the demurrer to the first cause of action is overruled.

D.

Second, Third, and Fourth
Causes of Action for Cancellation of Instrument

Defendants also demur to Plaintiff's complaint for failing to allege facts sufficient to state a cause of action.

An instrument is defined as "a written paper signed by a person or persons transferring the title to, or giving a lien on real property, or giving a right to a debt or duty." ((Gov. Code, § 27279, subd. (a).) "A written instrument, in respect to which there is a reasonable apprehension that if left outstanding it may cause serious injury to a person against whom it is void or voidable, may, upon his application, be so adjudged, and ordered to be delivered up or canceled." ((Civ. Code, § 3412.) "In actions to cancel a certain instrument it is necessary for the complaint to state a case within the code sections for which reason it is essential to allege the facts affecting the validity and invalidity of the instrument which is attacked." ((Kroeker v. Hurlbert (1940) 38 Cal.App.2d 261, 266.) "A forgery is a writing which falsely purports to be the writing of another, and is executed with the intent to defraud." (Schiavon v. Arnaudo Brothers (2000) 84 Cal.App.4th 374, 382 [internal quotations omitted].) "A deed is void if the grantor's signature is forged or if the grantor is unaware of the nature of what he or she is signing." (Id., at p. 378.)

"Forgery, at common law, is the false making or materially altering, with intent to defraud, of any writing which, if genuine, might apparently be of legal efficacy, or the foundation of a legal liability." ((People v. Franco (2018) 6 Cal.5th 433, 439.) "[T]he gravamen of forgery is the intent to defraud, not an actual injury." (Ibid.)

Plaintiff's complaint pleads the elements of cancellation of instrument because Plaintiff pleads that the written instrument, a deed, "is void and/or voidable on the following grounds: It lacks mutual assent by the parties; It lacks consideration; It was executed by mistake; It was executed based on a misrepresentation of Son; It creates an undue hardship for Plaintiff; Defendant obtained title by fraud; It may be a forgery." (Compl., ¶¶ 24, 29, 34.) However, Plaintiff's complaint does not include a specific code section or other laws to demonstrate the basis for cancellation. Moreover, because Plaintiff generally pleads fraud as a basis for cancellation, Plaintiff must meet the heightened pleading standard for fraud.

“The elements of fraud are (a) a misrepresentation (false representation, concealment, or nondisclosure); (b) scienter or knowledge of its falsity; (c) intent to induce reliance; (d) justifiable reliance; and (e) resulting damage.” ((Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.) “In California, fraud must be pled specifically; general and conclusory allegations do not suffice. [Citations.] Thus the policy of liberal construction of the pleadings ... will not ordinarily be invoked to sustain a pleading defective in any material respect. [Citation.] [¶] This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” ((Lazar v. Superior Court (1996) 12 Cal.4th 631, 645 [internal quotations omitted].) Less specificity is required if it appears from the nature of allegations that the defendant must necessarily possess full information, or if the facts lie more in the knowledge of opposing parties.¿(Alfaro v. Community Housing Improvement System & Planning Assn., Inc.¿(2009) 171 Cal.App.4th 1356, 1384-1385 (Alfaro).) Instead, such details “are properly the subject of discovery, not demurrer.” (Ibid.)

Defendants specifically demur to the second, third, and fourth causes of action due to fraud, asserting that “Plaintiff has pled insufficient facts to show how, when, where, to whom and by what means the alleged misrepresentations were tendered. Plaintiff’s allegations in his complaint are conclusory and do not specifically and fully allege the required elements of a fraud cause of action.” (Dem., 5:19-22.)

In opposition, Plaintiff contends that additional discovery is necessary, asserting that the demurrer should be overruled so Plaintiff can “conduct further discovery to determine whether Plaintiff’s signature was forged.” (Opp., 9:26-27.)

Because Plaintiff alleges that he does not recall executing or signing the deeds, believes the deeds are forgeries, and alleges a handwriting expert will be retained to determine whether the deeds are forgeries, it appears that Defendants possess information not known to Plaintiff. As stated in Alfaro, supra, 171 Cal.App.4th at p. 1384, "[h]ow does one show 'how' and 'by what means' something didn't happen, or 'when' it never happened, or 'where' it never happened?" However, Plaintiff does not plead the elements of fraud.

Plaintiff pleads that "[t]he Quitclaim Deed was generated as a result of mistake, undue influence, fraud or breach of fiduciary duty by Son. Plaintiff is elderly and cannot read English. Plaintiff entrusted Son to assist Plaintiff with his financial affairs. Son tricked Plaintiff into unknowingly executing the Disputed Deed No. 1 or had the Deed forged." (Compl., ¶¶ 23, 28.) Plaintiff also pleads that "[t]he Grant Deed was generated by Son in an attempt to put the Subject Property out of reach of Plaintiff. Son is attempting to conceal and avoid liability for his fraudulent acts by transferring ownership in the Subject Property to Daughter and Son-in-law." (Compl., ¶ 33.) Plaintiff pleads injury because he is "being deprived of his 100% ownership of the Subject Property." (Complaint, ¶¶ 25, 20, 35.) Although Alfaro provides a different pleading standard, Plaintiff does not clearly plead what misrepresentations were made, that he justifiably relied on the representations, and that Cesar Martinez knew of its falsity.

Accordingly, the demurrer to the second, third, and fourth causes of action for cancellation of instrument is sustained with leave to amend.

E.
Fifth Cause of Action for
Declaratory Relief

Defendants demur to Plaintiff's fifth cause of action for declaratory relief. "To qualify for declaratory relief, a party would have to demonstrate its action presented two essential elements: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party's rights or obligations." (Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 909 [quotation marks and brackets omitted].) A cause of action for declaratory relief should not be used as a second cause of action for the determination of identical issues raised in another cause of action. ((General of America Ins. Co. v. Lilly (1968) 258 Cal.App.2d 465, 470.)

Plaintiff's

complaint pleads that “Plaintiff claims that he is 100% owner of the Subject Property and Son, Daughter and Son-in-law have no interest in the Subject Property because the Disputed Deeds No. 1, No. 2 and No. 3 are void and invalid to the extent it reads that Son, Daughter and Son-in-law have 100% ownership of the Subject Property. Plaintiff claims that Son, Daughter and Son-in-law holds a 100% interest in the Subject Property as constructive trustees on behalf of Plaintiff. Son, Daughter and Son-in-law, on the other hand, claim to be 100% owners of the Subject Property based on the Disputed Deeds No. 1, No. 2 and No. 3.” (Compl., ¶ 37.) Additionally, “Plaintiff desires a judicial determination of his rights and duties, and a declaration that he is the 100% owner of the Subject Property.” (Compl., ¶ 37a.)

Based on the foregoing, Plaintiff pleads the requisite elements for a cause of action for declaratory relief. Plaintiff’s complaint and this cause of action demonstrate that a controversy exists between the parties that requires judicial determination.

F.

Sixth Cause of Action for
Elder Financial Abuse

“Financial abuse” of an elder occurs when a person or entity “[t]akes, secretes, appropriates, obtains, or retains real or personal property of an elder … for a wrongful use or with intent to defraud, or both”, or assists in such taking, secreting, appropriating, obtaining, or retaining of real or personal property. (Welf. & Inst. Code, § 15610.30, subds. (a)(1)-(2).) “A person or entity shall be deemed to have taken, secreted, appropriated, obtained, or retained property for a wrongful use if, among other things, the person or entity takes, secretes, appropriates, obtains, or retains the property and the person or entity knew or should have known that this conduct is likely to be harmful to the elder or dependent adult.” (Welf. & Inst. Code, § 15610.30, subd. (b).)

Defendants also demur to Plaintiff’s sixth cause of action, asserting that “[t]he elder abuse cause of action is based on the alleged fraud of defendants.” (Dem., 7:2-3.) However, “[a] plaintiff is not required to prove bad faith or fraud to prevail on a claim of financial elder abuse.” ((Cameron v. Las Orchidias Properties, LLC (2022) 82 Cal.App.5th 481, 507.) Here, Plaintiff pleads that “Son, Daughter and Son-in-law also took/secreted/appropriated/obtained or retained property of

Plaintiff by undue influence." (Compl., ¶ 40.) Plaintiff also pleads that he "is an elder or dependent adult, was deprived of his property right, by Son by having Plaintiff execute the Disputed Deeds No. 1 and No. 2 for no consideration and without Plaintiff being aware of what he was signing." (Compl., ¶ 41.) Further, Plaintiff asserts that "Son, Daughter and Son-in-law are trying to keep over $800,000 in equity without paying any consideration and that rightfully belongs to Plaintiff." (Compl., ¶ 43.)

Plaintiff adequately pleads financial elder abuse because he pleads Defendants' wrongful use, intent to defraud, and exertion of undue influence. Accordingly, the Court overrules the demurrer to the sixth cause of action.

Conclusion

Based on the foregoing, Defendants' demurrer to the second, third, and fourth causes of action is SUSTAINED, with leave to amend. Defendants' demurrer to the first, fifth, and sixth causes of action is OVERRULED.

Plaintiff is ordered to file and serve an amended complaint, if any, within 20 days of the date of this Order. If no amended complaint is filed within 20 days, the Court orders Defendants to file and serve an answer to the complaint within 30 days of the date of this Order.

Defendants are ordered to give notice of this Order.

DATED: August 10, 2026

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Hon. Teresa A. Beaudet

Judge, Los Angeles Superior Court